
School Visit Report**Audit Date: 21/01/2020****Report: Year 2 visit 3****DPE: Stuart Lee****School member: Marguerite Frankland**

1. Visit details

In addition to the audit walk, key GDPR documentation was reviewed and DPE best practice areas were discussed/demonstrated with the school. The school has inhouse cleaners and caretakers and is used for lettings. A minor data breach was logged during the visit. The school has moved to forename only for lists and displays and the school has purchased secure storage for medical folders and equipment, such as inhalers (refer to previous report).

SL to send the following documents to the school:

- Privacy statement
- Data breach procedure – updated during visit
- SAR procedure – updated during visit
- Governor hub – annual review of school data checklist
- Cyber essentials questionnaire – to be completed by IT technician

Main actions to complete from the visit:

- Move from paper based SEND folders to electronic systems. If keeping paper based, ensure there is adequate secure storage for folders to be added to;;
- Add key code entry to the deputy/SENCO office
- Add key code entry to the front office;
- Consider keycode entry for the Headteachers office;
- Continue to promote and raise awareness of GDPR best practice to staff.

Full details below:

2. Audit walk findings

SBM office

- **Action point:** Marguerite to change process to allow folders with staff pay and supply details to be added to secure storage at night, as these are currently on display and easily accessible.

Front office

- Discussed folders on display (i.e. student contact folders). **Action point:** The office would benefit from key code entry. This will mitigate some of the risk for having folders on display.

Deputy/SENCO office

- Sensitive files are placed on open shelving. The school is used for lettings. Office is locked at night.
- **Action point:** Add key code entry to minimise risk to unauthorised access to data.

Classrooms

Most classrooms had a student folder which could contain care plan, medical (psychology reports/IEP) and other sensitive data. Some staff made use of electronic systems and some staff used paper based systems. All staff spoken to would be

happy with electronic systems. This is an opportunity for the school to use GDPR as the driver for streamlining systems and improve practice.

Advisory: Ascertained during visit that this type of data could be kept on the MIS system/network with minimum data printed for classroom practitioners.

3. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1) toolkit

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>